

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY  
OF THE CITY OF CHEYENNE  
Office of City Clerk**

November 14, 2022

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: COUNCIL PRESIDENT – Scott Roybal, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Tom Segrave and Jeff White. Absent: Mayor Patrick Collins. Also present: Kylie Soden, Deputy City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Cook and pursuant to support received by Dr. Aldrich and Mr. White, item #18 was removed from the Consent Agenda. Upon request by Mr. Laybourn and pursuant to support received by Dr. Aldrich and Mr. Johnson, item #20 was removed from the Consent Agenda. Mr. Johnson moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on October 24, 2022. Motion (per Consent Agenda) carried.

[CA] Minutes from Special Meeting of The Governing Body on October 21, 2022. Motion (per Consent Agenda) carried.

ORDINANCE –3<sup>rd</sup> READING – Creating Section 9.04.070, Interference with Emergency Calls; Interference with Emergency Reporting System, of Chapter 9.04, Offenses by or Against Public Officers and Government, of Title 9, Public Peace and Welfare, of the Municipal Code of the City of Cheyenne, Wyoming. Reporting for Public Services Committee, Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. Comments were made by the following members of the governing body: Mr. Johnson and Dr. Rinne. (#4471)

ORDINANCE –3<sup>rd</sup> READING – Amending Section 2.08.010, Appointment and Term-Removal-Vacancy, of Chapter 2.08, City Officers and Employees Generally, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming, to eliminate an obsolete position and update a provision governing appointment of Judges. Mr. Cook moved to approve on third and final reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present. (#4472)

ORDINANCE –3<sup>rd</sup> READING – Annexing to the City of Cheyenne, Wyoming, land located between Clear Creek Parkway and South Greeley Highway, south of College Drive. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#4473)

ORDINANCE – 3<sup>rd</sup> READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County CB Community Business and County A-2 Agricultural to CB Community Business, AG Agricultural, and LI Light Industrial for land located between Clear Creek Parkway and South Greeley Highway, south of College Drive. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#4474)

ORDINANCE –2<sup>nd</sup> READING – Amending Section 5.12.110, Open Container-Sales and Consumption-Exceptions, of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the Municipal Code of the City of Cheyenne, Wyoming, amending provisions governing the possession of alcoholic liquor or malt beverages in an open container as specified. Mr. Cook moved to approve on second reading, seconded by Mr. Johnson. Mr. Cook moved to amend by substitute dated November 8, 2022, seconded by Dr. Rinne. Motion to amend by substitute carried. Voting “yes” – all members of the governing body present with the exception of Mr. Laybourn voting “no”. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present with the exception of Dr. Aldrich, Mr. Laybourn and Mr. Segrave voting “no”. Public comment was made by: Brian Bau, Albany Restaurant, Bar and Liquor Store, Domenic Bravo, President and CEO of Visit Cheyenne, Danica Mrozinsky, WyoMusic and Wendy Volk. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Esquibel, Mr. Johnson, Mr. Laybourn, Dr. Rinne, Mr. Segrave and Mr. White.

ORDINANCE –1<sup>st</sup> READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from P Public to CB Community Business for land located south of Missile Drive, east of I-25 – referred to Public Services Committee. (Sponsor Mr. Cook)

ORDINANCE – 1<sup>st</sup> READING Amending Ordinance #4447, approving and establishing revised water and sewer rates, tap and system development fees, administrative fees, service charges and penalties, and septic and commercial waste dump rates, as recommended by the Board of Public Utilities by replacing Board of Public Utilities Resolution No. 2022-03 in Section 9 -- referred to Finance Committee. (Sponsor – Mr. White)

RESOLUTION – Authorizing the formation of the Wise Water Action Committee to develop a water conservation roadmap specific to Cheyenne and supported by City decision makers and community stakeholders (postponed from October 24, 2022). Mr. Cook advised there was no recommendation from Public Services Committee. Mr. Cook moved to adopt. Motion died due to lack of a second.

RESOLUTION – Permitting the possession of open containers within the Downtown Development District Boundaries for post-Thanksgiving shopping and the Christmas Parade to be held November 25 & 26, 2022. Mr. Cook moved to adopt, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present with the exception of Dr. Aldrich and Mr. Laybourn voting “no”. Public comment was made by: Domenic Bravo, President and CEO of Visit Cheyenne. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Johnson, Mr. Laybourn and Mr. Segrave. (#6283)

RESOLUTION – Permitting the possession of open containers within the Downtown Development District Boundaries for the “Santa 0.5K” to be held on December 3, 2022. Mr. Cook advised there was no recommendation from Public Services Committee. Mr. Cook moved to adopt, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Laybourn and Mr. Segrave voting “no”. Public comment was made by: Domenic Bravo, President and CEO of Visit Cheyenne, Anthony Ortiz, Danica Mrozinsky, WyoMusic and Wendy Volk. Comments were made by the following members of the governing body: Mr. Johnson and Mr. Segrave. (#6284)

RESOLUTION – Permitting the possession of open containers within the Downtown Development District Boundaries for New Year’s Eve on December 31, 2022. Mr. Cook moved to adopt, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Laybourn voting “no”. Public comment was made by: Wendy Volk. Comments were made by the following members of the governing body: Mr. Laybourn and Mr. Segrave. (#6285)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for High Plains Business Park, a plat of a portion of Sections 23 and 24, Township 13 North, Range 67 West, and Section 19, Township 13 North, Range 66 West of the 6<sup>th</sup> P.M., Laramie County, Wyoming (located between I-25 and South Greeley Highway, south of College Drive). Mr. Cook moved to adopt, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body present. Comments were made by the following members of the governing body: Dr. Rinne. (#6286)

RESOLUTION – Authorizing submission of an application to the Wyoming Water Development Commission for grant funding for the Borie Wellfield Expansion Project in the amount of \$7,035,000.00 and authorizing the Director of the Board of Public Utilities to execute the application and all related documents. Reporting for Finance Committee, Mr. White advised there was no recommendation from Finance Committee. Mr. White moved to adopt, seconded by Mr. Laybourn. Motion failed. Voting “no” – all members of the governing body present. Comments were made by the following members of the governing body: Mr. Laybourn.

RESOLUTION – Certifying the Kiwanis (East) Park Greenway Underpass and Drainage Plan at the Union Pacific Railroad. Mr. Cook moved to adopt, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. Public comment was made by: Gene McDonald. Comments were made by the following members of the governing body: Mr. Esquibel, Mr. Laybourn, Dr. Rinne and Mr. Segrave. (#6287)

[CA] RESOLUTION – Certifying the East Pershing Boulevard Plan. Motion (per Consent Agenda) carried. (#6288)

[CA] RESOLUTION – Certifying the Walterscheid Boulevard Reconstruction Plan. Motion (per Consent Agenda) carried. (#6289)

[CA] RESOLUTION -- Authorizing the City Treasurer to discharge uncollectible debts pursuant to Wyo Stat. §16-4-502 – referred to Finance Committee.

Professional Services Agreement between the City of Cheyenne and Paladin Technologies Inc., for the Camera System and NVR System upgrades at the Cheyenne Public Safety Center (CPSC) (2012 Specific Purpose Option Tax Fund). Mr. White moved to approve in an amount not to exceed \$53,993.81, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson voting “no”. Comments were made by the following members of the governing body: Mr. Cook and Mr. Johnson. (#7632)

Memorandum of Understanding between the City of Cheyenne and Laramie County Community College (LCCC) to provide Commercial Driver’s License (CDL) “Your Truck” Training to City employees (Fleet Internal Service Fund). Mr. White moved to approve, seconded by Mr. Segrave. Mr. White moved to amend by substitute dated November 14, 2022, seconded by Mr. Segrave. Motion to amend by substitute carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson voting “no”. Main motion to amend by substitute carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson voting “no”. Comments were made by the following members of the governing body: Dr. Aldrich. (#7633)

[CA] Professional Services Agreement between the City of Cheyenne and Terracon Consulting Engineers for materials testing and special inspection services for new Emergency Response Facilities located at Converse Avenue, Countryside Avenue, and Hansen Street (3 locations) (2021 Specific Option Tax Fund). Motion (per Consent agenda) carried (in an amount not to exceed \$121,980.00). (#7634)

Cooperative agreement between the City of Cheyenne and Wyoming Department of Transportation (WYDOT) for 2023 epoxy pavement marking. (2019-2022 Optional 1% Sales Tax Fund). Mr. White advised the item was reviewed under other items for the agenda at the November 7, 2022 Finance Committee, therefore, provisions of Title 2 of City Code had been met. Mr. Cook moved to approve in an amount not to exceed \$139,611.00, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present. (#7635)

[CA] 2022-2023 Collective Labor Agreement re-negotiation between the City of Cheyenne and Cheyenne Firefighters, Local Union No. 279, International Association of Firefighters – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County for financial reimbursement to the City for construction of the Laramie County Community College/Sweetgrass Underpass (2017 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Sun Valley Estates, LLC, outlining responsibilities in pursuit of a land exchange of approximately 15,375 square feet to facilitate better alignment of the public Greenway system and better site layout for private multi-family development -- referred to Finance Committee.

[CA] Subgrantee Agreement between the City of Cheyenne and Laramie County for the FY 2022 Byrne Justice Assistance Grant for community-oriented policing overtime, benefits and patrol accessories (JAG 2022 Grant) -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and The SpyGlass Group, LLC, for “SpyCare”, a cloud software solution, to foster Information Technology (IT) management concerning communications subscriptions, contract tracking and auditing (General Fund) -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Granite Peak Environmental for Qualified Environmental Professional Services for an USEPA Brownfield Assessment Grant (U.S Environmental Protection Agency Grant) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Hellas Construction, Inc. for the South Lions Park Pickleball Court Design and Installation Services Project (Lottery Proceeds Capital Expenditures & Development Impact Fees/Park Improvements) – referred to Finance Committee.

[CA] Consideration of Bid #S-4-23 for an agreement between the City of Cheyenne and Aztec Construction Co., Inc., for the Cheyenne Fire & Rescue Department-Site 1 Utility Main Extensions Project (American Rescue Plan Federal Recovery Funds (ARPA)) -- referred to Finance Committee.

[CA] Consideration of Bid #E-7-23 for one (1) new Reel Grinder and one (1) new Bedknife Grinder for the City of Cheyenne Golf Division (Golf Facilities Fund) -- referred to Finance Committee.

[CA] Consideration to Purchase between the City of Cheyenne, and Granicus, LLC, for a three (3) year software agreement to utilize the Peak Agenda Management Software and Public Records Request Software for the City of Cheyenne City Clerk’s Office (American Rescue Plan Federal Recovery Funds (ARPA)) – referred to Finance Committee.

[CA] Consideration to Purchase between the City of Cheyenne and Vogel Traffic Services d/b/a EZ-Liner, for the refurbishment of an existing 2013 EZ-Liner Striping truck for the City of Cheyenne Traffic Division (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

No comments were made on the Voucher Report as presented.

Announcement was made of a Public Hearing to be held November 28, 2022 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for about 0.36 acres of land at 4612 Van Buren Avenue, Laramie County, Wyoming (located west of Van Buren Avenue, north of Dell Range Boulevard).

Announcement was made of a Public Hearing to be held November 28, 2022 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for a transfer of ownership of retail liquor license application filed with the City Clerk's Office for Andiamo 307 LLC d/b/a Andiamo 307, 1808 O'Neil Ave., Cheyenne, WY (license currently held by Poor Richard's d/b/a Poor Richard's).

Public comment was made by John Taylor and Madeline Martinez under other business.

The following members of the governing body made comments under other business: Dr. Aldrich, Mr. Cook, Mr. Esquibel, Mr. Johnson, Mr. Laybourn and Mr. White.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:02 p.m.

Submitted by,

Kylie Soden,  
Deputy City Clerk, CMC

This notice is available in alternative, accessible formats upon request.

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